

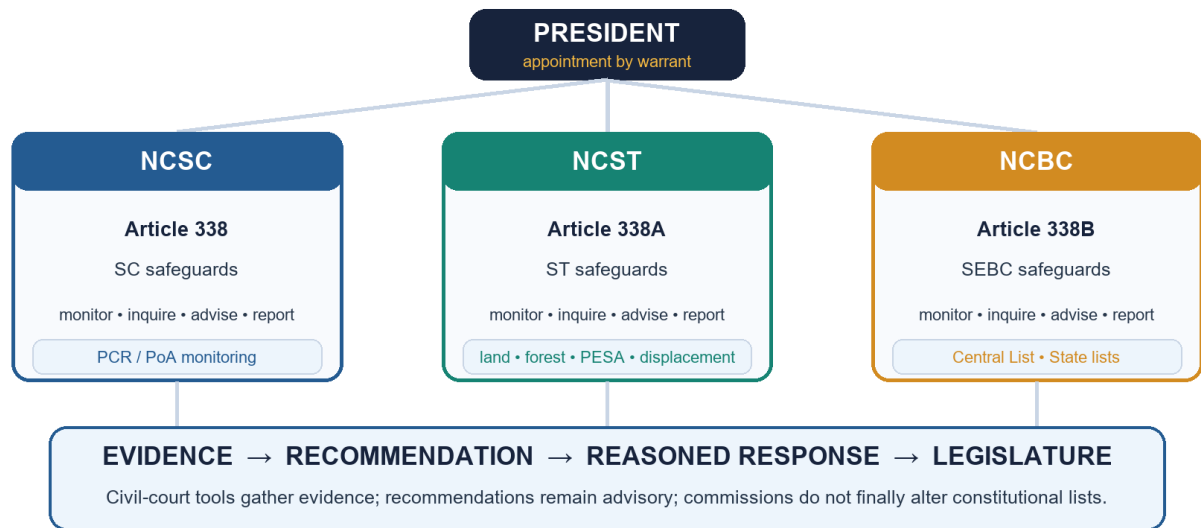
COMPLETE LEARNING SESSION

Polity 31 - National Commissions for SCs, STs and Backward Classes - Complete Topic Package

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

CONSTITUTIONAL SAFEGUARD ARCHITECTURE

Shared inquiry and accountability engine • distinct group domains and list routes



Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

Polity 31 - National Commissions for SCs, STs and Backward Classes - Complete Topic Package

Control date: 19 August 2026, Asia/Kolkata **Tags:** [FACT] directly supported by a named constitutional, statutory, official, judicial or audited local source; [ANALYSIS] reasoned exam use; [CURRENT] date-sensitive control; [LIMIT] qualification preventing overstatement. **Answer discipline:** claim -> named evidence -> analysis -> qualification. **Scope:** Articles 338, 338A, 338B, 341, 342, 342A and 366(26C); institutional evolution; composition; safeguards, complaints, development and reporting functions; civil-court powers; consultation; SC/ST/SEBC list mechanics; the 65th, 89th, 102nd and 105th Amendments; *Indra Sawhney*, *Jaishri Laxmanrao Patil* and *State of Punjab v. Davinder Singh*; domain overlaps, limits, comparison, accountability and reform.

Package method, source priority and legal-current control

- [FACT] Local-first sequence followed: Polity/basic/National-Commissions-SC-ST-BC.md -> Polity/advanced/31_National-Commissions-SC-ST-BC.md -> OCR-searchable local *Indian Polity* commission chapters -> Fundamental Rights/reservation, Scheduled and Tribal Areas, statutory-body, social-justice and Centre-State owners only where needed -> all relevant PYQ routing and audit ledgers.
- [FACT] Polity packages 29 and 30 were used only as structural, visual and validation references. Their subject content has not been imported.
- [CURRENT] Constitutional control was checked against the Legislative Department's official Constitution page and official Gazette texts of the 89th, 102nd and 105th Amendments.
- [FACT] The official NCSC history and functions pages, NCST establishment page and 2005 specification-of-other-functions notification, and NCBC duties page were checked directly.
- [FACT] The repealed National Commission for Backward Classes Act, 1993 and the 2018 Repeal Act were checked through official NCBC/India Code routes.
- [FACT] Judicial control uses the Supreme Court's official judgment in *Jaishri Laxmanrao Patil v. Chief Minister, Maharashtra* (5 May 2021) and *State of Punjab v. Davinder Singh* (1 August 2024), with *Indra Sawhney v. Union of India* (1992) used for the permanent-body origin.
- [CURRENT] No verified post-105th constitutional amendment changing Articles 338, 338A, 338B, 341, 342 or 342A was located by the control date.
- [LIMIT] Current chairpersons, individual vacancies and complaint-disposal totals are intentionally not frozen. They are volatile, unnecessary for the constitutional core and can distract from institutional design.
- [LIMIT] Commission websites sometimes use loose expressions such as "quasi-judicial". This package controls legal effect through the constitutional clauses: evidentiary civil-court powers apply only while investigating or inquiring and do not convert a commission into a court.

Authoritative evidence board

Named evidence	Claim controlled
Constitution, Articles 338, 338A and 338B	status, composition, duties, reports, civil-court powers and consultation
Constitution, Articles 341, 342, 342A and 366(26C)	SC, ST and Central/State SEBC list architecture
Constitution (Sixty-fifth Amendment) Act, 1990 and NCSC official history	replacement of the Special Officer by the combined constitutional commission; operational constitution on 12 March 1992
Constitution (Eighty-ninth Amendment) Act, 2003 and NCSC/NCST official history	separation of NCSC and NCST; operative from 19 February 2004
Constitution (One Hundred and Second Amendment) Act, 2018	Article 338B, original Article 342A and Article 366(26C); commenced 15 August 2018
Constitution (One Hundred and Fifth Amendment) Act, 2021	Central List clarification, State/UT lists and Article 338B(9) proviso; commenced 15 September 2021
NCBC Act, 1993 and NCBC (Repeal) Act, 2018	statutory origin, inclusion/exclusion focus, prior civil-court powers and repeal
NCST (Specification of Other Functions) Rules, 2005	minor forest produce, land, mineral/water, displacement, forests, PESA and shifting cultivation
<i>Indra Sawhney</i> (1992)	direction for a permanent body on inclusion and over/under-inclusion
<i>Jaishri Laxmanrao Patil</i> (2021)	majority reading of the 102nd Amendment and State identification power; Maratha ceiling holding
<i>State of Punjab v. Davinder Singh</i> (2024)	data-supported SC sub-classification without alteration of the Presidential List
Audited local PYQ ledgers and locally held official papers	exact routed demands, paper metadata and answer-key limitations

Official links used for control

- Legislative Department, Constitution: <https://legislative.gov.in/document/constitution-of-india-in-english>
- 89th Amendment official Gazette: <https://www.legislative.gov.in/static/uploads/2025/07/0c2366570aee86b57258a378ddf6dbc1.pdf>
- 102nd Amendment official Gazette: <https://www.legislative.gov.in/static/uploads/2025/07/8c366f8ebe268d1bee2992bfb4ae9db1.pdf>
- Amendment Acts 102 onward: <https://legislative.gov.in/document/amendment-acts-102-onwards>
- NCSC history: <https://ncsc.nic.in/about-us/history>
- NCSC functions: <https://ncsc.nic.in/about-us/functions-of-ncsc>
- NCSC annual-report archive: https://ncsc.nic.in/annual_reports_of_ncsc
- NCST establishment: <https://ncst.nic.in/page/about-the-commission>
- NCST 2005 additional functions: https://ncst.nic.in/uploads-dev/Function_of_the_Commission/5R%20ANNEXURE%201_II9063229042.doc
- NCBC constitutional duties: https://www.ncbc.nic.in/User_Panel/UserView.aspx?TypeID=1171
- NCBC Act, 1993 archive: <https://ncbc.nic.in/writereaddata/1113.pdf>
- NCBC repeal material: <https://www.indiacode.nic.in/handle/123456789/4036>
- PIB explanation of State identification power: <https://pib.gov.in/PressReleasePage.aspx?PRID=1739890>

- *Jaishri Laxmanrao Patil* official judgment: https://api.sci.gov.in/supremecourt/2019/23618/23618_2019_35_1501_27992_Judgement_05-May-2021.pdf
- *Davinder Singh* official judgment: https://api.sci.gov.in/supremecourt/2010/25536/25536_2010_1_1501_54462_Judgement_01-Aug-2024.pdf

Roadmap

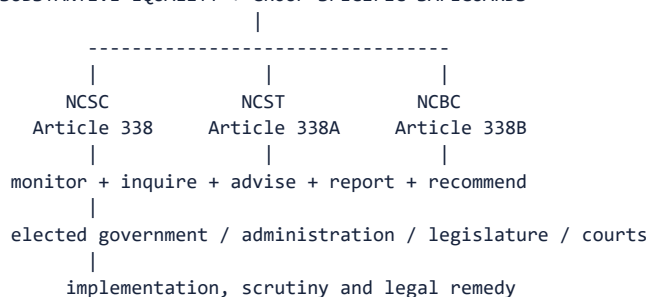
Stage	Coverage	Exam outcome
Foundation	why protective commissions exist	connect equality, safeguards and accountability
Evolution	Special Officer to three commissions	avoid enactment/operation date traps
Constitution	Articles 338, 338A and 338B clause by clause	distinguish shared design from textual differences
Powers	investigation, complaints, civil-court tools and reports	state authority without making the bodies courts
Group domains	SC, ST and SEBC-specific responsibilities	allocate examples to the right commission
Identification	Articles 341, 342, 342A and 366(26C)	identify the final legal authority over lists
Amendments/cases	65th, 89th, 102nd, 105th; three cases	write chronology with federal and equality logic
Evaluation	independence, overlap, delays and advisory force	build balanced GS-II analysis
Workbook	six verified PYQs, 48 MCQs and eight solved Mains	convert doctrine into marks

Scope ownership and cross-links

This package owns	Related owner	Boundary
NCSC, NCST and NCBC design	constitutional/statutory bodies	wider regulator theory remains with the body-design owner
list-identification authority	reservation and Fundamental Rights	detailed quota percentages, promotion doctrine and creamy-layer tests remain with reservation owners
NCST monitoring domain	Scheduled Areas, PESA and FRA	NCST does not administer Fifth/Sixth Schedule institutions or decide FRA claims
NCSC atrocity-safeguard monitoring	PCR and SC/ST PoA architecture	police, prosecutors and Special Courts enforce criminal law
NCBC constitutionalisation	OBC/SEBC social justice	welfare schemes and mobility outcomes remain with Social Justice
State-list federalism	Centre-State Relations	wider legislative/executive/fiscal federalism remains elsewhere

Visual 1 - The constitutional safeguard ecosystem

SUBSTANTIVE EQUALITY + GROUP-SPECIFIC SAFEGUARDS



Caption: The commissions connect constitutional safeguards to public accountability; they do not replace government, legislature, police or courts.

PART I - Complete foundation, core and advanced learning session

01. Why do these commissions exist?

[FACT] Part XVI contains special provisions relating to certain classes. Articles 338, 338A and 338B create specialised constitutional commissions for Scheduled Castes, Scheduled Tribes and socially and educationally backward classes.

[ANALYSIS] A safeguard may fail in at least four ways: a rule may be absent, an existing rule may be poorly implemented, an individual complaint may be ignored, or development policy may reproduce structural disadvantage. The commissions are designed to observe all four.

[LIMIT] Their existence does not guarantee enforcement. Their strongest constitutional levers are investigation, compulsory evidence-gathering, consultation, reasoned reporting and legislative visibility.

Visual 2 - Four failures and four institutional responses

Safeguard failure	Commission response	Constitutional anchor
rule or protection not implemented	investigate and monitor	clause (5)(a)
specific deprivation	inquire into complaint	clause (5)(b)
exclusion in development design	participate, advise and evaluate	clause (5)(c)
repeated systemic failure	report and recommend	clauses (5)(d)-(e), (6)-(7)

Visual 3 - Rights-to-accountability chain



Caption: The constitutional design converts implementation evidence into an answerable public record.

Visual 4 - Status is not sanction

Attribute	What constitutional status gives	What it does not automatically give
entrenchment	existence cannot be removed by ordinary executive action	immunity from constitutional amendment
visibility	report-and-memorandum route	automatic acceptance
inquiry	civil-court evidentiary tools	criminal investigation or punishment
consultation	mandatory institutional hearing on major policy	veto over policy
recommendation	expert, public and constitutionally recognised advice	decree or executable order

02. Historical evolution: officer -> combined commission -> specialised commissions

[FACT] Original Article 338 provided for a **Special Officer for Scheduled Castes and Scheduled Tribes**, appointed by the President, to investigate safeguards and report.

[FACT] A non-statutory multi-member commission was created by executive resolution in 1978 and renamed in 1987, while the constitutional Special Officer architecture continued.

[FACT] The Constitution (Sixty-fifth Amendment) Act, 1990 substituted a high-level multi-member **National Commission for Scheduled Castes and Scheduled Tribes**. The first constitutional commission under the amended Article was constituted on **12 March 1992**.

[FACT] The Constitution (Eighty-ninth Amendment) Act, 2003 amended Article 338 and inserted Article 338A. The separate NCSC and NCST became operational on **19 February 2004**.

[FACT] *Indra Sawhney* (1992) directed a permanent body for backward-class inclusion and over/under-inclusion complaints. Parliament created the statutory NCBC through the **NCBC Act, 1993**.

[FACT] The Constitution (One Hundred and Second Amendment) Act, 2018 inserted Article 338B, Article 342A and Article 366(26C). It received assent on **11 August 2018** and commenced on **15 August 2018**; the 1993 Act was repealed.

[FACT] The 105th Amendment received assent on **18 August 2021**, was gazetted on 19 August and commenced by notification on **15 September 2021**.

Visual 5 - Controlled evolution timeline

1950	12 Mar 1992	19 Feb 2004
Special Officer	---> combined NCSCST	---> NCSC + NCST
Article 338	65th Amendment	89th Amendment
1992 judgment	1993 statute	15 Aug 2018
Indra Sawhney	---> statutory NCBC	---> constitutional NCBC
		102nd Amendment
5 May 2021	15 Sep 2021	
Maratha reading	---> 105th Amendment operational:	
of Article 342A	State/UT own-list power explicit	

Caption: Enactment, assent, notification and operational date are not interchangeable.

Visual 6 - Amendment date discipline

Change	Act/assent date	Operational control	Exam-safe statement
combined constitutional SC/ST commission	65th Amendment Act, 1990	first commission constituted 12 March 1992	do not say "operational in 1990"
NCSC-NCST separation	89th Amendment Act, 28 September 2003	19 February 2004	Act year and institutional start differ
constitutional NCBC	102nd Amendment assent 11 August 2018	15 August 2018	Article 338B commenced after notified date
State SEBC-list restoration	105th Amendment assent 18 August 2021	15 September 2021	do not use assent as commencement

Visual 7 - Why specialisation occurred

Combined design problem	Institutional response	Analytical effect
SC and ST safeguards overlap but contexts differ	separate Articles 338 and 338A	deeper subject expertise
tribal land, forest and self-government issues require distinct focus	2005 NCST functions	domain-sensitive monitoring
backward-class inclusion disputes required permanent scrutiny	1993 NCBC	regular inclusion/exclusion advice
broader SEBC safeguards needed constitutional visibility	Article 338B	complaints, development and reporting beyond list advice

03. Shared constitutional design of Articles 338, 338A and 338B

[FACT] Each current commission consists of a **Chairperson, Vice-Chairperson and three other Members**.

[FACT] The President appoints them by warrant under hand and seal.

[FACT] Subject to parliamentary law, their conditions of service and tenure are determined by presidential rules. The three-year term found in governing rules is not itself written into the constitutional Articles.

[FACT] Each commission may regulate its own procedure.

Visual 8 - Shared nine-clause skeleton

Clause	Common institutional idea
(1)	creates and names the commission
(2)	Chairperson + Vice-Chairperson + three Members; service/tenure by rule
(3)	presidential appointment by warrant
(4)	power to regulate procedure
(5)	six duties
(6)	Union-related report laid before Parliament with memorandum
(7)	State-related report and State-legislature accountability
(8)	civil-court powers during investigation/inquiry
(9)	consultation on major policy matters

Visual 9 - Constitution, rules and procedure

CONSTITUTION

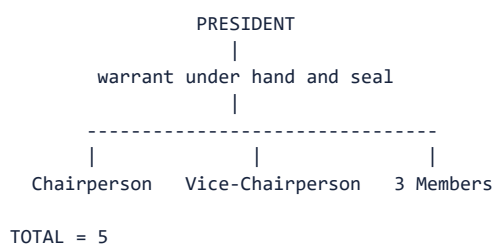
existence + size + appointment + duties + powers + reporting

|
PRESIDENTIAL RULES, SUBJECT TO PARLIAMENTARY LAW
service conditions + tenure + specified functions

|
COMMISSION'S OWN PROCEDURE
complaint processing + hearings + internal workflow

Caption: Do not attribute every operational detail to the Constitution itself.

Visual 10 - Current composition memory card



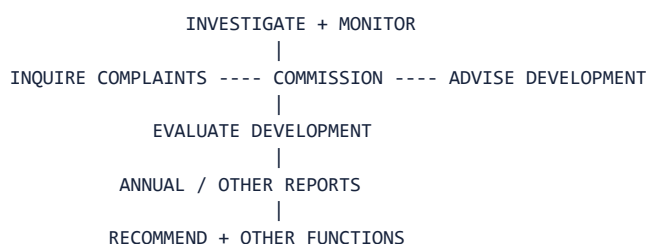
Visual 11 - Historical composition contrast

Stage	Composition	Trap control
original Article 338	one Special Officer	not a commission
65th-Amendment combined body	Chairperson + Vice-Chairperson + five other Members	historical body had seven
current NCSC/NCST/NCBC	Chairperson + Vice-Chairperson + three other Members	each current body has five

04. The six common duties

[FACT] Clause (5) in each Article contains the same functional architecture, adapted to the relevant group.

Visual 12 - Six-duty wheel



Visual 13 - Function-to-evidence matrix

Duty	Typical evidence	Output
investigate/monitor safeguards	laws, rules, files, implementation data	systemic finding
inquire into complaint	parties, records, affidavits, hearing	factual recommendation
participate and advise	draft policy, programme design, consultation	policy advice
evaluate progress	outcome data, field visits, studies	progress assessment
report	annual/special synthesis	President + legislature route
other specified functions	presidential rule	domain-specific task

[ANALYSIS] “Participate and advise” gives the commissions an ex ante role, while complaint inquiry and monitoring are ex post. A good Mains answer should show both.

[LIMIT] Participation does not mean that the commission prepares or executes the government's development plan.

Visual 14 - Ex ante and ex post roles

Time	Role	Example
before policy	consultation and development advice	proposed major safeguard policy
during implementation	monitoring and evaluation	application of reservation or welfare safeguards
after alleged harm	complaint inquiry	denial of a protected benefit
after recurring pattern	special/annual report	systemic recommendation and reasons for non-acceptance

05. Civil-court powers: exact scope and exact list

[FACT] While investigating a clause (5)(a) matter or inquiring into a clause (5)(b) complaint, each commission has all the powers of a civil court trying a suit in specified evidentiary matters.

[FACT] The enumerated powers are:

1. summoning and enforcing attendance of any person from any part of India and examining that person on oath;
2. requiring discovery and production of documents;
3. receiving evidence on affidavits;
4. requisitioning a public record or copy from a court or office;
5. issuing commissions for examination of witnesses and documents; and
6. any other matter the President may by rule determine.

Visual 15 - Civil-court toolkit

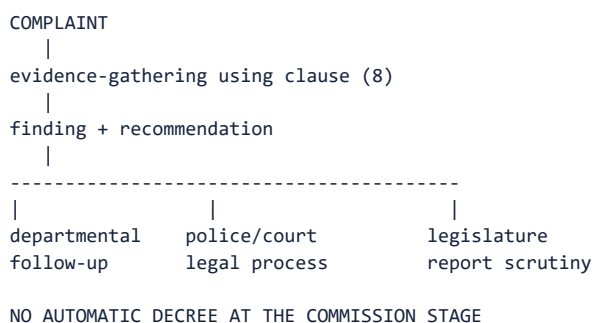
PERSONS -> summon + enforce attendance + examine on oath
 DOCUMENTS -> discovery + production
 AFFIDAVITS -> receive evidence
 PUBLIC RECORD -> requisition from court or office
 REMOTE PROOF -> issue commission for witness/document examination
 OTHER MATTER -> presidential rule

Visual 16 - Power boundary

Commission can	Commission cannot merely because of clause (8)
compel attendance and documents	convict or sentence
take evidence on oath/affidavit	award damages as a civil decree
requisition public records	strike down legislation
record findings and recommend action	conclusively determine criminal guilt
use powers during specified inquiry/investigation	use them as a general policing power

[LIMIT] "Powers of a civil court" describes tools, context and subject matter. It does not confer the entire jurisdiction of a civil court.

Visual 17 - Investigation is not adjudication



Visual 18 - Three meanings that must not be merged

Expression	Correct meaning
constitutional body	created by the Constitution
civil-court powers	specified evidence-compulsion tools during inquiry
court	judicial institution capable of binding adjudication within jurisdiction

06. Reporting: constitutional accountability, not a private letter

[FACT] Each commission presents annual reports and may present reports at other times it considers fit.

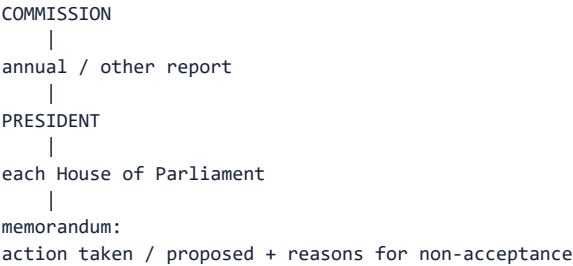
[FACT] For Union-related recommendations, the President causes the report to be laid before **each House of Parliament**, with a memorandum explaining action taken or proposed and reasons for non-acceptance.

[FACT] Articles 338(7) and 338A(7) forward State-related reports to the **Governor**, who causes laying before the State Legislature with the corresponding memorandum.

[FACT] Article 338B(7) is textually different: the State-related NCBC report is forwarded to the **State Government**, which causes it to be laid before the State Legislature with the memorandum.

[LIMIT] A shorthand saying “all three State reports go to the Governor” is inaccurate for Article 338B’s enacted text.

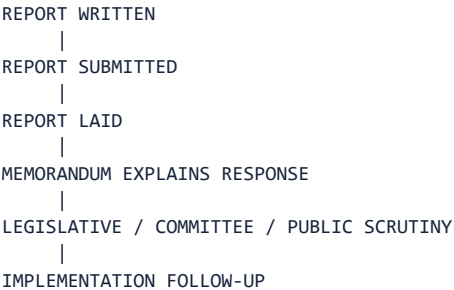
Visual 19 - Union report chain



Visual 20 - State report routes: the key textual difference

Commission	State-related copy goes to	Who causes legislative laying?
NCSC, Article 338(7)	Governor	Governor
NCST, Article 338A(7)	Governor	Governor
NCBC, Article 338B(7)	State Government	State Government

Visual 21 - Accountability stages



Caption: Submission, laying, debate and implementation are separate stages.

[CURRENT] The NCSC’s official archive records a visible lag in some recent cycles; for example, combined 2020-21 and 2021-22 reports submitted on 26 September 2023 were recorded as laid on 17 December 2024.

[ANALYSIS] A delayed report can retain historical value but lose preventive impact. Timely laying and a trackable response are therefore part of institutional effectiveness.

[LIMIT] A website field showing no tabling date is not by itself conclusive proof that tabling never occurred; it is evidence of a public-record gap unless cross-verified.

Visual 22 - Reporting deficit diagnosis

Deficit	Consequence	Reform direction
delayed commission report	stale scrutiny	statutory/constitutional calendar discipline
delayed laying	weak legislative visibility	prompt transmission and laying protocol
generic memorandum	no measurable follow-up	recommendation-wise response
no public tracker	repeated recommendations disappear	status dashboard with reasons

07. Consultation on major policy matters

[FACT] Articles 338(9) and 338A(9) require the Union and every State Government to consult the relevant commission on all major policy matters affecting SCs or STs.

[FACT] Article 338B(9) similarly requires consultation on major policy matters affecting SEBCs.

[FACT] The 105th Amendment added a proviso to Article 338B(9): the clause does not apply for the purposes of Article 342A(3), the State/UT own-list power.

[ANALYSIS] Consultation ordinarily requires a genuine opportunity to provide views before a final policy decision. It does not mean concurrence, consent or veto unless the Constitution or a law expressly says so.

Visual 23 - Consultation ladder

Stage	Weak form	Constitutionally meaningful form
timing	after decision	before finalisation
material	headline only	draft and relevant evidence
opportunity	ceremonial meeting	reasonable opportunity to respond
government response	silence	reasoned acceptance or departure
legal effect	veto	informed but non-binding input

Visual 24 - Consultation is not concurrence

CONSULTATION:

hear + consider + decide with reasons

CONCURRENCE:

approval required before action

VETO:

power to block action

Articles 338/338A/338B use the first, not the second or third.

Visual 25 - Article 338B(9) after the 105th Amendment

MAJOR SEBC POLICY

|
normally consult NCBC

EXCEPTION:

State/UT law preparing its own list under Article 342A(3)

|
Article 338B(9) consultation clause does not apply for that purpose

[LIMIT] The exception should not be expanded into a claim that States never consult NCBC on any SEBC matter. It is tied to Article 342A(3).

08. NCSC: Article 338 and the SC safeguard domain

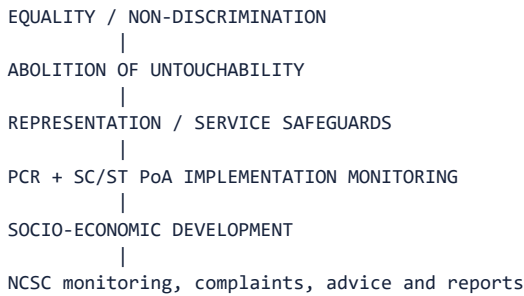
[FACT] NCSC monitors constitutional, legal and governmental safeguards for Scheduled Castes, inquires into specific complaints, advises and evaluates socio-economic development, and reports.

[FACT] Article 338(10), after the 102nd Amendment removed the earlier backward-class reference, continues to construe references to Scheduled Castes as including the Anglo-Indian community.

[ANALYSIS] NCSC's domain spans equality and representation safeguards, anti-untouchability protections, access to public institutions, service safeguards and welfare implementation.

[LIMIT] It does not itself prosecute an atrocity, register an FIR, try an offence or operate a Special Court.

Visual 26 - NCSC safeguard map



Visual 27 - NCSC versus criminal-law institutions

Function	NCSC	Police/prosecution/Special Court
monitor safeguards	yes	incident-specific role
inquire into deprivation complaint	yes	investigate statutory offence
summon evidence in commission inquiry	yes	use criminal-procedure powers
file charge-sheet	no	police
prosecute	no	Special Public Prosecutor
determine guilt and punishment	no	competent court

Visual 28 - PCR/PoA institutional chain



The routes can coexist; they are not substitutes.

[LIMIT] A commission recommendation may trigger administrative or legal follow-up, but it does not replace proof and procedure required in court.

09. NCST: Article 338A and the distinctive tribal domain

[FACT] NCST shares the common constitutional functions but has a distinctive domain because tribal safeguards involve territory, land, forests, minerals, water, displacement, self-government and cultural survival.

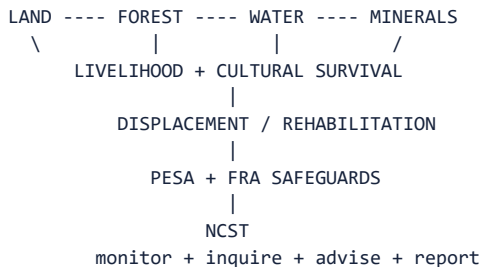
[FACT] Under the 2005 presidential rules, NCST's specified additional functions cover:

- ownership rights over minor forest produce;
- safeguards over mineral and water resources as provided by law;
- viable tribal livelihood strategies;
- relief and rehabilitation for displacement by development projects;
- prevention of land alienation and rehabilitation after alienation;

- tribal participation in forest protection and social afforestation;
- full implementation of PESA; and
- reduction and eventual elimination of disempowering shifting-cultivation practices.

[LIMIT] FRA, 2006 is an important later safeguard within NCST monitoring, but the 2005 notification itself predates FRA and should not be misquoted as naming it.

Visual 29 - NCST distinctive domain map



Visual 30 - 2005 additional-function matrix

Domain	NCST function	Boundary
minor forest produce	recommend ownership measures	legal vesting follows applicable law
minerals/water	recommend safeguards	does not grant mining lease
displacement	improve relief and rehabilitation	does not acquire land or award compensation
land alienation	prevention and rehabilitation measures	title disputes follow competent law/forum
forests	strengthen tribal participation	not the forest department
PESA	monitor and recommend full implementation	not a Gram Sabha or State legislature
shifting cultivation	recommend welfare/environment measures	policy must be rights-sensitive

Visual 31 - NCST and Fifth/Sixth Schedule institutions

Institution	Core role	NCST relationship
Governor under Fifth Schedule	report/regulation functions in Scheduled Areas	NCST may monitor safeguards and advise
Tribal Advisory Council	advises on ST welfare in relevant Fifth Schedule States	separate advisory institution
Gram Sabha under PESA	local self-government powers in Scheduled Areas	NCST monitors implementation
Autonomous District/Regional Council	Sixth Schedule legislative/judicial/administrative functions	NCST does not administer the council
FRA committees/Gram Sabha	forest-rights claim process	NCST monitors safeguard performance

Visual 32 - What NCST does not administer

NCST IS NOT:

- a Fifth Schedule Governor
- a Tribal Advisory Council
- a PESA Gram Sabha
- a Sixth Schedule Autonomous Council
- an FRA claim-adjudication committee
- a mining or forest regulator

NCST IS:

constitutional monitor + complaint body + adviser + reporter

10. NCBC: from statutory list adviser to constitutional safeguard commission

[FACT] *Indra Sawhney* directed establishment of a permanent body to consider requests for inclusion and complaints of over-inclusion and under-inclusion in backward-class lists.

[FACT] The NCBC Act, 1993 created a five-member statutory body: a judicial Chairperson, a social scientist, two persons with special knowledge of backward classes and a Member-Secretary.

[FACT] The 1993 Act focused on inclusion/exclusion advice and stated that the Commission's advice under that scheme would ordinarily bind the Central Government. It also conferred civil-court evidentiary powers.

[FACT] The 102nd Amendment created the constitutional NCBC under Article 338B; the 1993 Act was repealed from the constitutional body's operational transition.

Visual 33 - Statutory-to-constitutional comparison

Dimension	NCBC Act, 1993	Article 338B after 102nd
legal source	Act of Parliament	Constitution
central purpose	inclusion/exclusion and over/under-inclusion advice	full safeguard monitoring, complaints, development, reports and recommendations
composition	judicial Chair + specialist structure + Member-Secretary	Chair + Vice-Chair + three Members
appointment	Central Government under statute	President by warrant
civil-court tools	yes, by statute	yes, constitutionally specified
report route	statutory	President -> Parliament; State route under clause (7)
major-policy consultation	not the same constitutional command	Article 338B(9), subject to 105th proviso
binding effect	"ordinarily binding" advice in specific statutory scheme	no general binding force in Article 338B

Visual 34 - What actually changed

```

NARROWER LIST-ADVICE BODY
|
102nd Amendment
v
CONSTITUTIONAL SAFEGUARD BODY
|-- monitor all safeguards
|-- inquire into rights complaints
|-- advise/evaluate development
|-- report through constitutional route
|-- mandatory major-policy consultation
+-- civil-court tools retained in constitutional form
  
```

Visual 35 - What did not change

Continuity	Qualification
evidentiary inquiry powers	do not become adjudicatory decree powers
expert advisory character	recommendations remain non-binding
inclusion/exclusion relevance	final Central List change follows Article 342A and parliamentary law
reservation-policy context	policy remains subject to Articles 14-16 and judicial review
need for credible data	constitutional status does not create data automatically

[ANALYSIS] Constitutionalisation increased breadth, permanence and public accountability, but it did not convert NCBC into the final list-making authority or a reservation court.

11. Articles 341 and 342: SC and ST list mechanics

[FACT] Under Article 341(1), the President may, for a State or Union territory and after consultation with the Governor where it is a State, specify by public notification the castes, races, tribes or parts/groups deemed Scheduled Castes for that territory.

[FACT] Under Article 342(1), the parallel rule applies to tribes or tribal communities or parts/groups deemed Scheduled Tribes.

[FACT] Under Articles 341(2) and 342(2), Parliament may by law include or exclude entries. Except through that parliamentary route, a subsequent notification cannot vary the original notification.

[FACT] SC/ST status is territorial: a community recognised in one State need not be recognised in another.

Visual 36 - SC list legal chain

INITIAL SPECIFICATION

President + Governor consultation for a State

public notification

State/UT-specific SC list

LATER INCLUSION / EXCLUSION

Parliament by law

Visual 37 - ST list legal chain

INITIAL SPECIFICATION

President + Governor consultation for a State

public notification

State/UT-specific ST list

LATER INCLUSION / EXCLUSION

Parliament by law

Visual 38 - Who cannot finally alter an SC/ST list alone?

Actor	Can recommend/supply evidence?	Can finally include/exclude alone?
NCSC/NCST	yes	no
State Government	yes	no
Governor	consulted in initial State notification	no
President	initial specification by notification	not later variation alone
Parliament	yes	yes, by law
court	interprets legality/entry; cannot rewrite list as legislature	no legislative substitution

Visual 39 - Identification versus distribution

Question	Governing idea
Who belongs to the constitutional SC/ST list?	Articles 341/342
May benefits be rationally distributed within the list?	equality/reservation doctrine, including <i>Davinder Singh</i>
May a listed caste be removed through sub-classification?	no; list alteration follows Article 341(2)

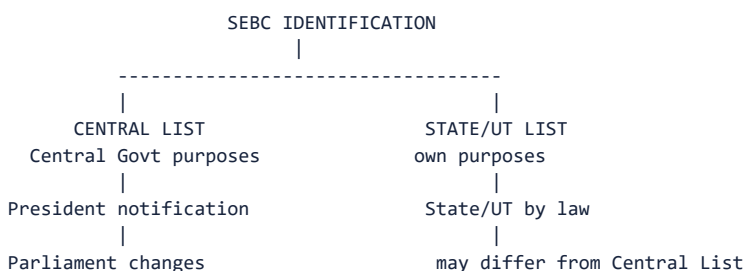
12. Article 342A and Article 366(26C): Central and State SEBC lists

[FACT] The 102nd Amendment originally inserted Article 342A, allowing presidential specification of SEBCs for a State/UT and parliamentary inclusion/exclusion, and inserted Article 366(26C).

[FACT] The 105th Amendment rewrote the architecture:

- Article 342A(1) concerns SEBCs in the **Central List** for Central Government purposes;
- Article 342A(2) gives Parliament the inclusion/exclusion role for the Central List;
- the Explanation defines Central List as prepared and maintained by and for the Central Government;
- Article 342A(3) permits every State or Union territory, **by law**, to prepare and maintain its own list for its own purposes, even if entries differ from the Central List; and
- Article 366(26C) defines SEBCs by reference to Article 342A for Central, State or Union-territory purposes as applicable.

Visual 40 - Post-105th dual-list architecture



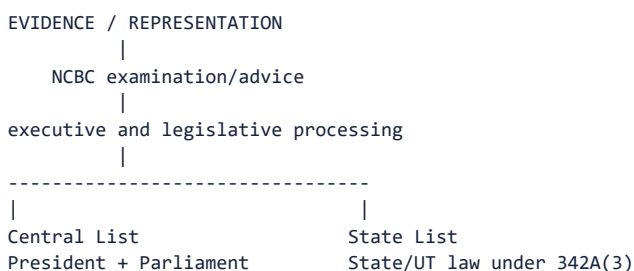
Visual 41 - Article 342A clause map

Clause	Rule	Exam trap
342A(1)	President specifies Central List for Central purposes	not every State-purpose list
342A(2)	Parliament includes/excludes from Central List	NCBC does not issue final inclusion order
Explanation	defines Central List	central and State lists may differ
342A(3)	State/UT may by law maintain own list	explicit post-105th power

Visual 42 - Article 366(26C) bridge

“SOCIALLY AND EDUCATIONALLY BACKWARD CLASSES”
 |
 Article 366(26C)
 |
 classes deemed under Article 342A
 for Central OR State OR Union-territory purposes,
 as the case may be

Visual 43 - Commission advice versus legal list change



[LIMIT] A recommendation can be influential and procedurally important without being the final constitutive act.

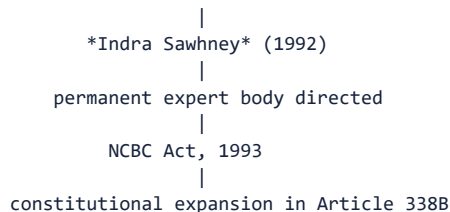
13. The amendment-and-case trajectory

Visual 44 - 65th to 105th master trajectory

Event	Institutional/legal move	Core lesson
65th Amendment	Special Officer -> combined commission	collective monitoring
89th Amendment	NCSC separated from NCST	group-specific expertise
<i>Indra Sawhney</i>	permanent BC body directed	regular list review
NCBC Act, 1993	statutory NCBC	list-advice institution
102nd Amendment	constitutional NCBC + Article 342A	status and list architecture linked
<i>Jaishri Patil</i>	majority read State identification power as displaced	federal consequence of wording
105th Amendment	Central/State list distinction explicit	State power restored/clarified
<i>Davinder Singh</i>	SC sub-classification allowed with evidence	distribution within list differs from alteration of list

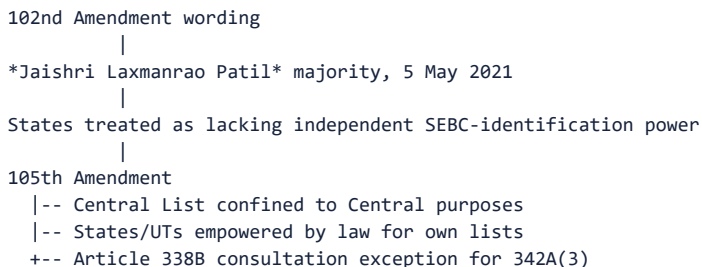
Visual 45 - Indra Sawhney to NCBC

OVER-INCLUSION / UNDER-INCLUSION COMPLAINTS



[LIMIT] Detailed creamy-layer tests and the entire 50 per cent doctrine belong to the reservation owner. Here, *Indra Sawhney* is used primarily for NCBC's institutional origin.

Visual 46 - Maratha judgment and 105th Amendment



[FACT] The Maratha reservation law also failed the Court's 50 per cent ceiling analysis; that holding should not be collapsed into the separate Article 342A federal issue.

Visual 47 - Two holdings, two questions

Jaishri Patil issue	Question	Later constitutional response
reservation ceiling	did exceptional circumstances justify breach?	no 105th Amendment answer; reservation doctrine remains
SEBC identification power	what did 102nd wording do to State power?	105th expressly restored/clarified State/UT own lists

Visual 48 - Davinder Singh boundary

ARTICLE 341 LIST REMAINS INTACT

|
State may create evidence-based sub-classification
for fair distribution of reservation benefits

|
must rest on quantifiable, demonstrable material

|
cannot use sub-classification to delete a listed caste

[CURRENT] *Davinder Singh* overruled *E.V. Chinnaiah* on the permissibility of sub-classification. Separate opinions discussed creamy-layer ideas; those observations should not be presented as one unanimous legislated SC/ST exclusion rule.

14. Common design and meaningful differences

Visual 49 - Three-commission comparison

Dimension	NCSC	NCST	NCBC
Article	338	338A	338B
beneficiary group	SCs; clause (10) Anglo-Indian reference	STs	SEBCs
separate origin	19 Feb 2004	19 Feb 2004	15 Aug 2018 constitutional
specialised extra domain	SC safeguards/atrocities monitoring	2005 tribal land/forest/resource/PESA functions	Central/State SEBC policy and list context
State report recipient	Governor	Governor	State Government
consultation	all major SC policy	all major ST policy	all major SEBC policy, except 342A(3) purpose
final list authority	Article 341	Article 342	Article 342A

Visual 50 - Same engine, different terrain

SHARED ENGINE:

monitor + complaint + development advice + report + civil-court tools

DIFFERENT TERRAIN:

NCSC -> caste discrimination, untouchability, representation, atrocities safeguards

NCST -> territory, land, forest, resources, displacement, PESA/FRA

NCBC -> SEBC safeguards, development, policy and dual-list architecture

15. Overlap without institutional conflation

[ANALYSIS] Rights problems often cross institutions. The correct answer is to map concurrent roles rather than nominate one omnipotent body.

Visual 51 - NCSC overlap map

Problem	NCSC role	Other decisive institution
untouchability practice	monitor/inquire/recommend	police/court under PCR law where offence
atrocities	monitor complaint and safeguard implementation	police, prosecutor, Special Court
service discrimination	inquire and recommend	department, tribunal or constitutional court
reservation in minority institution	advise within mandate	Articles 15(5), 30 and courts control limit

Visual 52 - NCST overlap map

Problem	NCST role	Other decisive institution
FRA claim denial	monitor/inquire	Gram Sabha/SDLC/DLC and courts under law
land acquisition/displacement	safeguards and rehabilitation advice	acquiring authority, LARR process, courts
mining in Scheduled Area	resource-right monitoring	statutory regulators, Gram Sabha where law requires, courts
PESA non-implementation	monitor and recommend	State legislature/executive and local institutions

Visual 53 - NCBC overlap map

Problem	NCBC role	Other decisive institution
Central List inclusion request	examine/advise	President/Parliament under Article 342A
State own-list law	general safeguard role; 338B(9) exception applies to 342A(3) purpose	State/UT legislature
reservation validity	evidence/advise	Constitution, legislature/executive and courts
welfare exclusion complaint	inquire and recommend	responsible department and legal forum

16. Institutional comparison: constitutional and statutory bodies

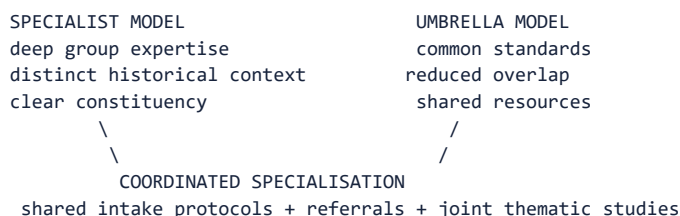
Visual 54 - National-body comparison matrix

Body	Legal basis	Primary constituency/domain	Core legal effect
NCSC	Article 338	Scheduled Castes	constitutional monitoring/advice/reporting
NCST	Article 338A	Scheduled Tribes	constitutional monitoring with tribal-specific domain
NCBC	Article 338B	SEBCs	constitutional monitoring plus SEBC-policy/list context
NHRC	Protection of Human Rights Act, 1993	broad human-rights violations	statutory inquiry/recommendation
National Commission for Minorities	NCM Act, 1992	notified minorities	statutory safeguard monitoring/advice
State SC/ST/BC commissions	State law/executive framework varies	State-specific constituency	territorial statutory/advisory role

Visual 55 - Constitutional versus statutory status

Test	Constitutional commission	Statutory commission
source	Constitution	Act of legislature
abolition/redesign	constitutional amendment for constitutional core	legislative amendment/repeal
powers	constitutional text plus rules	statute plus rules
recommendation force	depends on text; usually advisory here	depends on statute; can still be advisory
quality guarantee	none automatic	none automatic

Visual 56 - Specialist versus umbrella model



[ANALYSIS] Constitutional merger of NCSC, NCST and NCBC would require amendment and risks diluting distinct problems. Coordination is a more proportionate first reform than abolition.

17. Independence, accountability and practical limits

[FACT] Constitutional status, presidential appointment, own procedure, civil-court tools and legislative reporting give institutional stature.

[ANALYSIS] Independence remains incomplete where appointments are executive-led, secretariats depend on government resources, posts remain vacant, reports are delayed or recommendations lack follow-up.

[LIMIT] These are design and implementation risks, not proof that every commission is ineffective in every case.

Visual 57 - Independence balance sheet

Strength	Counter-pressure
constitutional entrenchment	executive-led appointment process
President-appointed membership	service/resources determined within governmental framework
procedure-regulating power	administrative dependence
evidence-compulsion tools	no final adjudicatory sanction
report to constitutional authorities	laying and follow-up may be delayed

Visual 58 - Effectiveness equation

EFFECTIVENESS =
 legal status
 + member independence
 + staff and regional capacity
 + evidence quality
 + timely reports
 + government response
 + legislative scrutiny
 + implementation follow-up

Status alone is one term, not the whole equation.

Visual 59 - Advisory-force spectrum

Level	Example	Force
observation	field finding	persuasive
recommendation	corrective measure	advisory
consultation	input before major policy	mandatory process, non-binding outcome
report memorandum	reasons for acceptance/non-acceptance	accountability
court order	decree/judgment	binding within jurisdiction

Visual 60 - Recurring implementation deficits

Deficit	Institutional effect
vacancies	fewer hearings and studies
weak regional reach	access cost for complainants
poor data	generic recommendations
jurisdictional overlap	forum confusion
delayed reports	reduced preventive value
weak follow-up	repeated non-compliance
overclaiming civil-court status	legal confusion and credibility loss

18. Reform agenda - proposals, not current law

[ANALYSIS] The following are reform proposals. None should be written as an existing constitutional requirement unless enacted.

Visual 61 - Problem-to-reform matrix

Problem	Reform proposal	Qualification
opaque appointments	public criteria, search process and reasoned selection	preserve constitutional appointing authority
vacancies	time-bound appointment calendar	avoid automatic extension without law
delayed reports	fixed submission, transmission and laying timelines	may require rules/law
weak follow-up	recommendation-wise digital dashboard	protect complainant privacy
poor coordination	inter-commission referral protocol	do not erase specialist jurisdiction
generic evidence	common data and research standards	retain group-specific indicators
weak local access	staffed regional offices and digital filing	digital route must not exclude offline claimants

Visual 62 - Appointment reform options

VACANCY FORECAST
|
PUBLIC ELIGIBILITY CRITERIA
|
SEARCH / SHORTLIST WITH DISCLOSED PROCESS
|
PRESIDENTIAL APPOINTMENT
|
CONFLICT-OF-INTEREST + PERFORMANCE DISCLOSURE

Visual 63 - Follow-up dashboard design

Field	Purpose
recommendation number	precise tracking
responsible ministry/State	ownership
accepted/partly accepted/not accepted	status clarity
reasons	constitutional accountability
deadline	implementation discipline
evidence of completion	prevents paper compliance

Visual 64 - Why blanket binding power is not an easy cure

MORE BINDING POWER

|
possible faster compliance

|
but also:
separation-of-powers concerns
policy rigidity
overlap with courts/administration
need for appeal and procedure

BETTER FIRST STEP:

timely evidence + reasoned response + legislative scrutiny

19. Current-control board, 19 August 2026

Visual 65 - Stable and volatile facts

Stable legal fact	Volatile fact deliberately not frozen
Article numbers and clause design	current officeholders
constitutional composition	current vacancies
amendment commencement dates	complaint-disposal totals
report-laying architecture	pending case counts
2005 NCST functions	website headline statistics

[CURRENT] The NCSC website was live and updated close to the control date; the NCST and NCBC official sites continued to present the constitutional mandates described here.

[CURRENT] The latest constitutional development directly controlling the dual SEBC-list architecture remains the 105th Amendment, while *Davinder Singh* supplies the major recent SC-list distribution doctrine.

[LIMIT] Commission annual reports may contain useful sector findings, but a statistic must carry its reporting period, definition and publication date. This package does not turn a dashboard count into a timeless fact.

20. Answer-writing architecture

Visual 66 - Claim-evidence-analysis-qualification unit

CLAIM

"Constitutional status raises accountability."

NAMED EVIDENCE

Articles 338-338B: President, Parliament, memorandum

ANALYSIS

government must publicly explain acceptance or rejection

QUALIFICATION

recommendations remain non-binding and laying can be delayed

Visual 67 - 10-mark answer blueprint

Segment	Content
20 words	direct thesis and Article
80 words	three changes/functions with named evidence
30 words	one limit or complication
20 words	graded verdict

Visual 68 - 15-mark answer blueprint

INTRO: constitutional/statutory context

BODY 1: design and functions

BODY 2: named amendment/case trajectory

BODY 3: limits and accountability

CONCLUSION: status + capacity + follow-up verdict

Visual 69 - 20-mark answer blueprint

Dimension	Evidence
history	Special Officer, 65th, 89th, 1993 Act, 102nd
constitutional design	clauses (1)-(9)
group specificity	NCSC/NCST/NCBC domains
list mechanics	Articles 341/342/342A
federal/equality doctrine	<i>Jaishri Patil</i> , 105th, <i>Davinder Singh</i>
evaluation	advisory force, reports, vacancies/resources
reform	appointment, data, follow-up, coordination

Visual 70 - Directive map

Directive	Required operation
discuss	explain dimensions and reach a balanced view
examine	test claim against law, evidence and limits
analyse	show causal/institutional relationships
evaluate	apply criteria and give a graded judgment
argue your case	take a position after engaging the opposite case

Visual 71 - High-risk trap board

Wrong statement	Correct control
civil-court powers make the body a court	tools only during specified inquiry/investigation
commission adds a community to the list	final authority follows Articles 341/342/342A
consultation means consent	views must be sought; advice is non-binding
all State reports go to Governor	Article 338B(7) says State Government
89th Amendment operated in 2003	separate bodies operated from 19 Feb 2004
102nd began on assent date	commenced 15 Aug 2018
105th began on assent date	commenced 15 Sep 2021
NCST administers Scheduled Areas	it monitors/advises; constitutional institutions administer

21. Integrated revision before assessment

Visual 72 - One-page institution map

ART 338 NCSC -----\
 ART 338A NCST -----> COMMON DESIGN:
 ART 338B NCBC -----/ 5 members, President, six duties,
 reports, civil-court tools, consultation

LISTS:
 341 SC -> President initial; Parliament changes
 342 ST -> President initial; Parliament changes
 342A SEBC -> Central List: President/Parliament
 State List: State/UT by law under clause (3)

LIMIT:
 recommendation != decree
 consultation != concurrence
 sub-classification != list alteration

Visual 73 - Chronology rapid strip

Recall	Date
65th combined commission operational	12 March 1992
statutory NCBC	1993
NCSC/NCST separation operational	19 February 2004
NCST other functions	23 August 2005
102nd operational	15 August 2018
Maratha judgment	5 May 2021
105th operational	15 September 2021
<i>Davinder Singh</i>	1 August 2024

Visual 74 - Final legal-effect ladder

COMMISSION EVIDENCE
|
COMMISSION FINDING
|
COMMISSION RECOMMENDATION
|
GOVERNMENT RESPONSE + REASONS
|
LEGISLATIVE SCRUTINY
|
LAW / EXECUTIVE ACTION / COURT PROCESS AS REQUIRED

Visual 75 - Final comparison mnemonic

338 = CASTE safeguards
338A = TRIBAL safeguards + land/forest/resource lens
338B = BACKWARD-CLASS safeguards + dual-list federal lens

341 = SC list
342 = ST list
342A = SEBC Central + State list architecture

PYQ, Practice and Solved Workbook

Audited PYQ routing note

- [FACT] The audited 2018-2023 routing ledgers assign four direct Mains demands and one direct Prelims demand to this topic: 2018 GS-II Q2, 2018 GS-II Q16, 2020 GS-II Q15, 2022 GS-II Q5 and 2023 Prelims Q35.
- [FACT] The 2024 Prelims Q84 list-identification question is included as a verified adjacent PYQ because Article 342 mechanics are an expressly required part of this package.
- [FACT] Exact English wording below was checked against locally held official papers.
- [LIMIT] The official 2023 Prelims key is not held locally. The question is retained and conceptually resolved, but no official or inferred option letter is asserted.

Visual 76 - PYQ route audit

Year	Paper/Q	Demand	Route
2018	GS-II Q2	NCSC and minority-institution reservation	direct
2018	GS-II Q16	multiplicity and umbrella commission	direct
2020	GS-II Q15	constitutionalising NCW	direct cross-cutting
2022	GS-II Q5	NCBC statutory-to-constitutional role	direct
2023	Prelims Q35	constitutional versus statutory bodies	direct; key unavailable locally
2024	Prelims Q84	Article 342 identification authority	adjacent list-mechanics control

Verified PYQ 1 - UPSC GS-II 2018, Q2 - 10 marks, 150 words

Whether National Commission for Scheduled Castes (NCSC) can enforce the implementation of constitutional reservation for the Scheduled Castes in the religious minority institutions? Examine.

Demand decoding

- **Whether** requires a direct yes/no position.
- **Enforce** requires distinction between inquiry/recommendation and binding legal command.
- **Religious minority institutions** activates Articles 15(5) and 30(1).

Evidence-led model solution

The NCSC cannot itself enforce SC reservation in religious-minority educational institutions.

[FACT] Article 338 authorises NCSC to monitor SC safeguards, inquire into specific deprivation complaints, advise on socio-economic development and report with recommendations. Clause (8) gives evidentiary civil-court powers during inquiry, not a decree-enforcement jurisdiction.

[FACT] Article 15(5) enables special provisions, including reservation in admissions, for socially and educationally backward classes and SCs/STs, but expressly excludes minority educational institutions protected by Article 30(1). *T.M.A. Pai Foundation* and *P.A. Inamdar* protect minority/private-unaided institutional autonomy, while *Ashoka Kumar Thakur* upheld the statutory OBC framework without erasing the minority-institution exclusion.

[ANALYSIS] NCSC may investigate discriminatory practice falling outside legitimate minority autonomy, seek records, recommend corrective policy and expose non-compliance through its report. It cannot create a reservation obligation where the Constitution has excluded minority institutions, nor can it execute its recommendation as a court decree.

[LIMIT] Minority status does not immunise every act from equality, regulatory or criminal law; the narrow conclusion concerns compulsory reservation under the stated constitutional route.

Thus, NCSC has monitoring and persuasive authority, but the Articles 15(5)-30(1) boundary and its advisory character prevent it from enforcing such reservation.

Why this earns marks: It answers “whether” immediately, links Article 338 power to the Articles 15(5)/30 limit, uses named cases and qualifies rather than absolutising minority autonomy.

Verified PYQ 2 - UPSC GS-II 2018, Q16 - 15 marks, 250 words

Multiplicity of various commissions for the vulnerable sections of the society leads to problems of overlapping jurisdiction and duplication of functions. Is it better to merge all commissions into an umbrella Human Rights Commission? Argue your case.

Demand decoding

- **Argue your case** requires a defended position, not an unranked list.
- The answer must distinguish constitutional commissions from statutory commissions.

Evidence-led model solution

India's commission landscape combines constitutional specialists—NCSC, NCST and NCBC under Articles 338, 338A and 338B—with statutory bodies such as NHRC, NCW and the National Commission for Minorities. Overlap is real, but a complete merger is not the best first response.

Case for an umbrella body: A common intake system can reduce forum-shopping; shared research and regional infrastructure can lower duplication; uniform hearing and follow-up standards can strengthen vulnerable complainants whose identities intersect.

Case against merger: [FACT] NCSC, NCST and NCBC possess distinct constitutional mandates and cannot be abolished or merged through ordinary administrative action. [FACT] NCST's 2005 functions cover tribal land, forests, displacement, resources and PESA—issues not reducible to generic human-rights review. [ANALYSIS] SC untouchability/atrocity safeguards and SEBC list federalism also require specialist knowledge. A generalist umbrella risks dilution and weaker constituency access.

The NHRC itself is statutory and recommendatory; placing constitutional bodies beneath it would create source-of-authority and accountability conflicts. Merger also does not cure delayed appointments, weak staffing, poor data or non-binding recommendations.

A better model is **coordinated specialisation**: a shared digital intake and referral protocol, joint inquiries for overlapping harms, common data standards, interoperable regional offices and recommendation-wise government response dashboards, while preserving distinct constitutional identities.

Therefore, rationalisation of statutory overlap is defensible, but wholesale merger is disproportionate. Coordination secures administrative efficiency without sacrificing constitutional history, domain expertise and group-specific accountability.

Why this earns marks: It takes a clear position, gives the strongest argument on both sides, distinguishes legal bases, uses NCST as named evidence and proposes an institutionally feasible middle path.

Verified PYQ 3 - UPSC GS-II 2020, Q15 - 15 marks, 250 words

Which steps are required for constitutionalization of a Commission? Do you think imparting constitutionality to the National Commission for Women would ensure greater gender justice and empowerment in India? Give reasons.

Evidence-led model solution

Constitutionalising the National Commission for Women requires more than renaming the existing statutory body.

Steps: Parliament must pass a Constitution Amendment Bill under Article 368 inserting an Article that defines the body's existence, composition, appointment, tenure framework, duties, reporting route, inquiry powers and consultation role. The amendment must secure the constitutionally prescribed special majority; State ratification is necessary only if the proposal touches a matter listed in the Article 368 proviso. Consequentially, the NCW Act, 1990 would require repeal or adaptation, and rules would operationalise service conditions and procedure.

Why constitutional status can help: Articles 338-338B provide the comparison. Entrenchment raises the cost of abolition, a President-to-Parliament report route compels public reasons for rejected recommendations, and a consultation clause can bring gender impact into major policy design. A constitutionally secured mandate may also strengthen continuity and symbolic parity.

Why it is insufficient: NCSC, NCST and NCBC remain recommendatory despite constitutional status. Civil-court powers gather evidence but do not punish. Executive-dominated appointments, vacancies, weak regional capacity, delayed reports and poor follow-up can persist. Gender justice also depends on police, courts, labour regulation, health, education, budgets and local institutions.

Therefore, constitutionalisation can improve permanence and accountability, but greater empowerment requires transparent appointments, resources, reasoned government responses, time-bound reports and coordination with enforcement agencies. Status is an enabling platform, not an outcome guarantee.

Why this earns marks: It separately answers the procedural and evaluative limbs, uses Article 368 and the 338-series comparison, and ends with a qualified institutional verdict.

Verified PYQ 4 - UPSC GS-II 2022, Q5 - 10 marks, 150 words

Discuss the role of the National Commission for Backward Classes in the wake of its transformation from a statutory body to a constitutional body.

Evidence-led model solution

The 102nd Amendment transformed NCBC from a specialised statutory list-adviser into a broader constitutional safeguard commission.

[FACT] Following *Indra Sawhney* (1992), the NCBC Act, 1993 created a permanent body mainly to examine inclusion, exclusion and over/under-inclusion in the Central backward-class list. The Act already supplied civil-court evidentiary powers.

[FACT] The 102nd Amendment, operational from 15 August 2018, inserted Article 338B and Article 342A and repealed the 1993 framework. NCBC now investigates and monitors all SEBC safeguards, inquires into rights complaints, advises and evaluates socio-economic development, reports to the President, recommends corrective

measures and must normally be consulted on major SEBC policy.

[ANALYSIS] Constitutional status adds permanence, broader subject jurisdiction and parliamentary accountability.

[LIMIT] It does not make NCBC a court or final list-maker: Central List alteration follows Article 342A and parliamentary law, and recommendations remain advisory.

After *Jaishri Laxmanrao Patil* read the 102nd Amendment as displacing State identification power, the 105th Amendment restored/clarified State and UT own lists under Article 342A(3).

Thus, constitutionalisation strengthened status, scope and visibility, but effective social justice still depends on data, capacity, reasoned follow-up and constitutionally valid reservation policy.

Why this earns marks: It answers the post-transformation “role”, distinguishes new and continuing features, and integrates the 105th Amendment without allowing federal list doctrine to overwhelm the 150-word demand.

Verified PYQ 5 - UPSC Prelims 2023, Q35

Consider the following organizations/bodies in India: 1. The National Commission for Backward Classes 2. The National Human Rights Commission 3. The National Law Commission 4. The National Consumer Disputes Redressal Commission How many of the above are constitutional bodies? A. Only one B. Only two C. Only three D. All four

Controlled concept resolution

- [FACT] NCBC is constitutional under Article 338B.
- [FACT] NHRC is statutory under the Protection of Human Rights Act, 1993.
- [FACT] The Law Commission is constituted through executive resolutions, not the Constitution.
- [FACT] NCDRC is statutory under consumer-protection legislation.
- [ANALYSIS] Therefore, the constitutional-body count is one.
- [LIMIT] The official 2023 Prelims key is not held locally. No option letter is claimed as an official or inferred key.

Verified PYQ 6 - UPSC Prelims 2024, Q84

Consider the following statements: 1. It is the Governor of the State who recognizes and declares any community of that State as a Scheduled Tribe. 2. A community declared as a Scheduled Tribe in a State need not be so in another State. Which of the statements given above is/are correct? A. 1 only B. 2 only C. Both 1 and 2 D. Neither 1 nor 2

Official Set-A key: B.

[FACT] Article 342 gives initial specification power to the President by public notification, after consultation with the Governor where a State is concerned. [FACT] ST status is State/UT-specific, so statement 2 is correct. Parliament later includes or excludes by law.

Original MCQs - 36 questions

OM1. Current composition

Each of the NCSC, NCST and NCBC consists of

A. a Chairperson, a Vice-Chairperson and three other Members B. a Chairperson and four other Members without a Vice-Chairperson C. a Chairperson, a Vice-Chairperson and five other Members D. one Special Officer appointed by the President

Answer: A.

[FACT] Articles 338(2), 338A(2) and 338B(2) provide the same five-member design.

OM2. Combined commission operational date

The first constitutional combined National Commission for Scheduled Castes and Scheduled Tribes under the 65th Amendment was constituted on

A. 26 January 1950 B. 12 March 1992 C. 28 September 2003 D. 19 February 2004

Answer: B.

[FACT] NCSC's official history distinguishes the 1990 Amendment Act from constitution of the first commission on 12 March 1992.

OM3. NCSC-NCST separation

The separate NCSC and NCST became operational on

A. 7 June 1990 B. 12 March 1992 C. 19 February 2004 D. 23 August 2005

Answer: C.

[FACT] The 89th Amendment was enacted in 2003 but came into force for separation on 19 February 2004.

OM4. 102nd Amendment commencement

The constitutional NCBC architecture under the 102nd Amendment commenced on

A. 11 August 2018 B. 14 August 2018 C. 18 August 2021 D. 15 August 2018

Answer: D.

[FACT] Assent was 11 August; Notification S.O. 3989(E), dated 14 August, appointed 15 August 2018.

OM5. 105th Amendment commencement

The 105th Amendment became operational on

A. 15 September 2021 B. 18 August 2021 C. 19 August 2021 D. 5 May 2021

Answer: A.

[FACT] Assent and Gazette publication preceded the commencement notification.

OM6. Article 338 special coverage

Article 338(10), after removal of the earlier backward-class reference by the 102nd Amendment, continues to extend the Scheduled-Caste reference to the

A. religious minorities B. Anglo-Indian community C. denotified tribes D. economically weaker sections

Answer: B.

[FACT] This is a textual feature of Article 338, not a common clause in Articles 338A or 338B.

OM7. NCST additional function

Which is specifically found in the 2005 presidential rules on NCST's other functions?

A. fixing royalty rates for all minerals B. deciding individual FRA titles finally C. recommending measures on tribal ownership of minor forest produce D. administering Autonomous District Councils

Answer: C.

[FACT] The rules name minor forest produce; the other options confer powers the NCST does not possess.

OM8. NCBC State-report route

Under Article 338B(7), a State-related report is forwarded to the

- A. Governor, who may choose whether to lay it B. Chief Justice of the High Court C. President for direct laying in the State Legislature D. State Government, which causes it to be laid before the State Legislature

Answer: D.

[FACT] This is a textual difference from Articles 338(7) and 338A(7), which use the Governor route.

OM9. Monitoring duty

Investigation and monitoring of safeguards, and evaluation of their working, appears in

- A. clause (5)(a) of each commission Article B. clause (6) dealing with Parliament C. clause (8) dealing with civil-court powers D. clause (9) dealing with consultation

Answer: A.

[FACT] Clause (5)(a) is the systemic safeguard-monitoring function.

OM10. Complaint duty

Inquiry into a specific complaint about deprivation of rights is primarily authorised by

- A. the list-identification Articles only B. clause (5)(b) of the relevant commission Article C. the Governor's discretionary power D. Article 368

Answer: B.

[FACT] Complaint inquiry is distinct from systemic monitoring under clause (5)(a).

OM11. Exact civil-court power

Which expression accurately reproduces a clause (8) power?

- A. issuing binding writs to government B. punishing contempt by imprisonment C. issuing commissions for examination of witnesses and documents D. reviewing Supreme Court judgments

Answer: C.

[FACT] "Issuing commissions" is an evidentiary process; it is not a power to issue constitutional writs.

OM12. Power not conferred

Civil-court powers do not by themselves authorise a commission to

- A. receive affidavit evidence B. requisition public records C. examine a summoned person on oath D. impose criminal punishment

Answer: D.

[LIMIT] The powers are investigative and evidentiary, not penal.

OM13. Major-policy clause

The constitutional direction that governments consult the commission on major policy matters is best understood as

- A. a mandatory consultation process without an automatic veto B. a requirement of concurrence in every individual administrative order C. a transfer of legislative power to the commission D. a power to invalidate policy without court review

Answer: A.

[ANALYSIS] Consultation must be meaningful, but the Articles do not make advice binding.

OM14. 105th consultation exception

The proviso inserted in Article 338B(9) excludes that clause's application for the purposes of

A. Article 341(2) B. Article 342A(3) C. Article 338A(5)(f) D. Article 340(1)

Answer: B.

[FACT] The exception accompanies the State/UT own-list power restored/clarified by the 105th Amendment.

OM15. Scheduled Castes list

Initial specification of Scheduled Castes for a State is governed by

A. Article 340 B. Article 342A C. Article 341 D. Article 338B

Answer: C.

[FACT] Article 341 is the SC list Article.

OM16. Later SC/ST list change

After an initial presidential notification, inclusion or exclusion from an SC/ST list is made by

A. the relevant national commission by order B. the Governor by notification C. the State Cabinet by resolution D. Parliament by law

Answer: D.

[FACT] Articles 341(2) and 342(2) reserve later variation to Parliament.

OM17. Scheduled Tribes list

Which Article governs initial specification of Scheduled Tribes?

A. Article 342 B. Article 341 C. Article 338 D. Article 366(26C)

Answer: A.

[FACT] Article 342 parallels Article 341 but concerns tribes and tribal communities.

OM18. Territorial character

A community's status as an ST

A. must be identical throughout India B. may differ from one State/UT to another C. is decided finally by NCST D. depends only on residence in a Scheduled Area

Answer: B.

[FACT] The constitutional notification is State/UT-specific.

OM19. Central SEBC List

After the 105th Amendment, Article 342A(1) principally concerns

A. State lists for municipal purposes B. all backward-class lists for every constitutional purpose C. the Central List for Central Government purposes D. the SC list under Article 341

Answer: C.

[FACT] The 105th Amendment inserted the express Central-purpose limitation.

OM20. State SEBC list

Article 342A(3) permits a State or Union territory to

A. alter the Central List by executive order B. ask NCBC to issue the State list C. vary the SC list through rules D. prepare and maintain by law its own SEBC list for its own purposes

Answer: D.

[FACT] Entries may differ from the Central List.

OM21. Definition bridge

The constitutional definition of “socially and educationally backward classes” is found in

A. Article 366(26C) B. Article 341(1) C. Article 338A(9) D. Article 330

Answer: A.

[FACT] Article 366(26C) now accommodates Central, State and Union-territory purposes through Article 342A.

OM22. NCBC and list inclusion

Which statement is correct?

A. NCBC's recommendation itself amends the Central List B. NCBC advises/examines, while constitutional list change follows Article 342A C. every State list requires an NCBC concurrence certificate D. courts must accept every NCBC recommendation

Answer: B.

[LIMIT] Influence in the process is not final constitutive authority.

OM23. Statutory NCBC composition

Under the 1993 Act, the statutory NCBC included

A. only serving civil servants B. Chairperson + Vice-Chairperson + three Members in the present form C. a judicial Chairperson, a social scientist, two backward-class specialists and a Member-Secretary D. the Union Social Justice Minister as ex officio Chair

Answer: C.

[FACT] The 102nd Amendment replaced this statutory composition with the current constitutional pattern.

OM24. 1993 advice formula

The repealed NCBC Act, 1993 stated that advice given under its inclusion/exclusion function would

A. always be void unless Parliament approved first B. operate as a Supreme Court decree C. bind every State Legislature absolutely D. ordinarily be binding on the Central Government

Answer: D.

[FACT] “Ordinarily” allowed a qualified rather than absolute binding formula.

OM25. Civil-court continuity

Which feature was not wholly new in 2018 because the statutory NCBC already possessed it?

A. civil-court evidentiary powers B. constitutional entrenchment C. Article 338B reporting D. constitutional major-policy consultation

Answer: A.

[FACT] The source of the power changed from statute to Constitution; the basic evidence toolkit had existed.

OM26. Institutional origin of statutory NCBC

The judicial direction most directly linked to a permanent backward-class body came from

A. *T.M.A. Pai Foundation* B. *Indra Sawhney* C. *S.R. Bommai* D. *Janhit Abhiyan*

Answer: B.

[FACT] The 1992 Mandal judgment drove the 1993 statutory institution.

OM27. Maratha judgment and Article 342A

The majority in *Jaishri Laxmanrao Patil* read the 102nd Amendment as

A. abolishing NCBC B. making all reservation unconstitutional C. displacing States' independent SEBC-identification power D. converting every State list into an SC list

Answer: C.

[FACT] The 105th Amendment responded to this federal consequence.

OM28. Purpose of 105th Amendment

The 105th Amendment primarily

A. merged NCSC and NCST B. made all NCBC recommendations binding C. abolished the Central List D. restored/clarified State and UT power to maintain own SEBC lists

Answer: D.

[FACT] It also inserted the Article 338B(9) proviso and revised Article 366(26C).

OM29. Davinder Singh

The 2024 judgment permits States to

A. sub-classify Scheduled Castes for fair benefit distribution on supporting evidence B. delete a caste from the Article 341 list by executive order C. treat SC status as nationally uniform D. ignore equality review

Answer: A.

[LIMIT] Sub-classification is not list alteration.

OM30. Presidential List boundary

Under *Davinder Singh*, a sub-classification measure

A. automatically changes the Presidential notification B. cannot use benefit distribution as a device to exclude the remainder of the listed class C. requires no empirical basis D. gives NCSC final quota-allocation power

Answer: B.

[FACT] The Court requires a constitutionally defensible, evidence-backed design.

OM31. NCSC and atrocity cases

Which institutional allocation is accurate?

A. NCSC conducts the criminal trial B. NCSC files every charge-sheet C. NCSC monitors/inquires, while police, prosecutors and courts exercise criminal-law powers D. the Special Court submits its judgment for NCSC approval

Answer: C.

[FACT] Constitutional monitoring and criminal adjudication are complementary, not interchangeable.

OM32. NCST boundary

NCST

- A. directly administers every Fifth Schedule area
- B. replaces all PESA Gram Sabhas
- C. grants final mining clearances
- D. monitors and advises on tribal safeguards without administering those institutions

Answer: D.

[LIMIT] Its 2005 functions are recommendation and monitoring functions.

OM33. NHRC comparison

The NHRC is

- A. a statutory body under the Protection of Human Rights Act, 1993
- B. created by Article 338
- C. a constitutional appellate court over NCSC
- D. the final SC/ST list authority

Answer: A.

[FACT] Broad human-rights jurisdiction does not change its statutory source.

OM34. National Commission for Minorities

The National Commission for Minorities is

- A. established under Article 338B
- B. statutory under the National Commission for Minorities Act, 1992
- C. the Article 342A list-maker
- D. a constitutional court

Answer: B.

[FACT] It must not be conflated with NCSC/NCST/NCBC.

OM35. State commissions

State SC/ST/BC commissions

- A. can alter the Central constitutional lists finally
- B. replace the relevant national constitutional commission
- C. operate under State-specific legal frameworks without displacing national constitutional authority
- D. exercise Supreme Court jurisdiction

Answer: C.

[FACT] Their source, powers and territorial reach depend on the relevant State framework.

OM36. Institutional effectiveness

Which is the best evaluation?

- A. constitutional status guarantees compliance
- B. civil-court powers guarantee conviction
- C. reporting alone guarantees implementation
- D. status matters, but capacity, timely reports, reasons and follow-up determine practical effect

Answer: D.

[ANALYSIS] Institutional performance is a design-and-implementation equation.

Remedial MCQs - 12 questions

RM1. Current-size trap

A candidate writes that each current commission has a Chairperson and five other Members. The correction is

- A. Chairperson + Vice-Chairperson + three other Members B. Chairperson + four judges C. Chairperson + Vice-Chairperson + five other Members D. one Special Officer only

Answer: A.

[FACT] The historical combined body and the current bodies have different compositions.

RM2. Historical-composition trap

The combined commission created through the 65th-Amendment design had

- A. five persons in total B. Chairperson + Vice-Chairperson + five other Members C. Chairperson + three other Members D. no Vice-Chairperson

Answer: B.

[FACT] Current five-member composition should not be projected backward.

RM3. State-report trap

Which pairing is accurate?

- A. Article 338B -> Governor only B. Article 338A -> State Government, never Governor C. Articles 338/338A -> Governor; Article 338B -> State Government D. all three -> Chief Minister

Answer: C.

[FACT] The difference is visible in the enacted constitutional text.

RM4. Clause (8) context trap

Civil-court powers are available

- A. for any political statement issued by a commission B. only after a High Court delegates jurisdiction C. for every governmental decision whether related to safeguards or not D. while investigating clause (5)(a) matters or inquiring into clause (5)(b) complaints

Answer: D.

[FACT] Context limits the power.

RM5. "Issuing commissions" trap

The phrase means

- A. a procedural method for examination of witnesses/documents B. creating a new constitutional commission C. issuing an arrest warrant D. appointing a State Commission

Answer: A.

[FACT] It is a conventional evidentiary expression.

RM6. State-list form trap

Article 342A(3) says a State or Union territory may prepare and maintain its own list

- A. by a commission's oral advice B. by law C. by a Governor's private communication D. only after Parliament amends the Central List

Answer: B.

[FACT] The legal form is expressly specified.

RM7. Consultation-exception trap

The 105th Amendment's proviso to Article 338B(9)

A. abolishes all NCBC consultation B. applies to Article 341 changes C. removes clause (9) for the purpose of State/UT own lists under 342A(3) D. makes NCBC advice binding on courts

Answer: C.

[LIMIT] The exception should not be generalised beyond its text.

RM8. Amendment-date trap

Which statement is correct?

A. the 102nd and 105th Amendments commenced on their assent dates B. the 89th Amendment's separate commissions operated from 2003 C. the 65th Amendment's combined commission operated from 1990 D. the 102nd commenced 15 August 2018 and the 105th commenced 15 September 2021

Answer: D.

[FACT] The answer distinguishes enactment/assent from notified commencement.

RM9. List-authority trap

Later inclusion or exclusion in an SC or ST list requires

A. parliamentary law B. an NCSC/NCST final order C. a State executive notification alone D. a Governor's direction

Answer: A.

[FACT] Articles 341(2) and 342(2) control.

RM10. Sub-classification trap

The safest description of *Davinder Singh* is that it

A. lets States delete castes from the Presidential List B. permits evidence-based distributional sub-classification without changing the list C. creates an automatic creamy-layer statute for SCs/STs D. transfers Article 341 power to NCSC

Answer: B.

[CURRENT] Separate opinions must not be converted into a single unanimous rule beyond the holding.

RM11. NCBC-transformation trap

Which statement best captures 2018?

A. every NCBC power was newly invented B. NCBC lost all inclusion/exclusion relevance C. constitutionalisation broadened safeguards/reporting while civil-court tools had statutory precedent D. NCBC became the final reservation court

Answer: C.

[FACT] The change was major but not a complete institutional creation ex nihilo.

RM12. Reform-status trap

A public appointment panel, fixed report-laying deadline and binding follow-up dashboard are

A. already clauses (10)-(12) of every commission Article B. parts of the 89th Amendment C. holdings of *Indra Sawhney* D. reform proposals unless enacted through the competent route

Answer: D.

[LIMIT] A good Mains answer labels proposals as proposals.

Original solved Mains practice - 8 questions

Original Solved Mains 1 - 10 marks, 150 words

Question: "Civil-court powers do not make the National Commissions for SCs, STs and Backward Classes courts." Explain.

Model solution

The statement distinguishes institutional tools from adjudicatory status.

[FACT] Articles 338(8), 338A(8) and 338B(8) give the commissions civil-court powers only while investigating safeguards or inquiring into specific complaints. They may summon persons across India, examine them on oath, compel documents, receive affidavits, requisition public records and issue commissions for witness/document examination.

[ANALYSIS] These powers improve fact-finding and prevent departments or parties from defeating an inquiry by withholding evidence. They support informed recommendations and reports.

[LIMIT] The commissions cannot on that basis convict, sentence, award executable damages, strike down a law or conclusively adjudicate title. Police and prosecutors enforce criminal law; civil/constitutional courts issue binding judgments within jurisdiction. Commission findings instead travel through administrative follow-up and the constitutional report-and-memorandum route.

Thus, the bodies are constitutional investigative-recommendatory institutions with selected court-like tools, not courts of plenary jurisdiction.

Why this earns marks: It gives the exact clause context and powers, explains their purpose and states four clear legal limits.

Original Solved Mains 2 - 10 marks, 150 words

Question: Examine how the reporting clauses of Articles 338, 338A and 338B create legislative accountability.

Model solution

The reporting design converts expert findings into an answerable constitutional record.

[FACT] Each commission submits annual and other reports. Under clause (6), the President causes Union-related reports to be laid before each House of Parliament with a memorandum stating action taken or proposed and reasons for non-acceptance.

[FACT] Under Articles 338(7) and 338A(7), State-related reports go to the Governor for laying before the State Legislature. Article 338B(7) instead routes them to the State Government, which causes the laying.

[ANALYSIS] This structure prevents a report from remaining private correspondence. It allows legislators, committees, media and affected groups to compare recommendation with governmental response. The reason-giving requirement raises the political cost of silent rejection.

[LIMIT] Accountability can weaken where submission, transmission or laying is delayed, memoranda are generic, or follow-up is not tracked. Laying also does not make recommendations binding.

Therefore, the clauses create transparency and deliberative sanction, but practical accountability depends on timeliness and recommendation-wise scrutiny.

Why this earns marks: It identifies the NCBC textual difference, links reason-giving to accountability and avoids equating laying with enforcement.

Original Solved Mains 3 - 15 marks, 250 words

Question: Compare the constitutional design and distinctive domains of the NCSC, NCST and NCBC.

Model solution

Articles 338, 338A and 338B use one institutional template for three different terrains of social justice.

Common design: [FACT] Each body has a Chairperson, Vice-Chairperson and three Members appointed by the President; may regulate procedure; monitors safeguards; inquires into complaints; advises and evaluates development; submits reports; recommends measures; exercises specified civil-court powers during inquiry; and must normally be consulted on major policy.

NCSC: Its domain includes SC equality, anti-untouchability, representation, service and atrocity safeguards. It may monitor PCR/PoA implementation, but police, prosecutors and Special Courts enforce criminal law. Article 338(10) retains the Anglo-Indian reference.

NCST: Tribal disadvantage is territorially and resource embedded. The 2005 rules add minor forest produce, minerals/water, land alienation, displacement, forest participation, PESA and shifting cultivation. NCST monitors these safeguards but does not administer Fifth/Sixth Schedule bodies or adjudicate FRA claims.

NCBC: Article 338B broadened the 1993 list-focused statutory body into a full SEBC safeguard commission. Its distinctive context is the Central/State list architecture under Article 342A. After the 105th Amendment, Article 338B(9) consultation does not apply for Article 342A(3) State-list purposes.

Textual accountability difference: NCSC/NCST State reports go to the Governor; NCBC's Article 338B(7) uses the State Government.

[ANALYSIS] Specialisation recognises that identical procedural machinery cannot erase distinct histories and policy fields.

[LIMIT] None of the three is a court or final list-maker; recommendations remain advisory.

Thus, the commissions share constitutional stature but derive relevance from differentiated expertise.

Why this earns marks: It compares both common architecture and four precise differences, with named rules and limits rather than three disconnected descriptions.

Original Solved Mains 4 - 15 marks, 250 words

Question: Explain the constitutional architecture for identifying Scheduled Castes, Scheduled Tribes and socially and educationally backward classes. What role do the national commissions play?

Model solution

The Constitution separates expert advice from the final legal act of identification.

Scheduled Castes: [FACT] Article 341 authorises the President, after Governor consultation for a State, to specify SCs by public notification. Parliament alone may later include or exclude by law.

Scheduled Tribes: [FACT] Article 342 creates the parallel State/UT-specific route for tribes and tribal communities. Territorial specificity means one community's status can differ across States.

SEBCs: [FACT] After the 105th Amendment, Article 342A(1)-(2) governs the Central List for Central Government purposes: presidential specification and parliamentary variation. The Explanation defines the Central List. Article 342A(3) allows every State/UT, by law, to maintain its own list for its own purposes; entries may differ. Article 366(26C) supplies the definition bridge.

Commission role: NCSC, NCST and NCBC investigate safeguards, receive representations, gather evidence and recommend. NCBC has special inclusion/exclusion expertise inherited from its 1993 origin. Their analysis may inform executive and legislative processing.

[LIMIT] A commission does not add or delete a community by final order. Governors do not declare STs. Courts interpret validity but do not substitute themselves for the parliamentary list-amendment function.

Davinder Singh further distinguishes **identification** from **distribution**: evidence-based SC sub-classification may allocate benefits within the list without changing Article 341 membership.

Therefore, list legitimacy combines constitutional authority, territorial sensitivity, expert evidence and legislative accountability.

Why this earns marks: It covers all four requested Articles, names each final authority, positions the commissions accurately and adds the current sub-classification distinction.

Original Solved Mains 5 - 15 marks, 250 words

Question: NCST's distinctive mandate reflects the territorial and resource dimensions of tribal justice, but it does not administer tribal self-government. Discuss.

Model solution

NCST's Article 338A design is common to the other commissions, but its 2005 additional functions recognise that tribal disadvantage is tied to land, habitat, resources and displacement.

[FACT] The presidential rules ask NCST to recommend measures on ownership of minor forest produce, safeguards over mineral and water resources, viable livelihoods, relief and rehabilitation after development-induced displacement, prevention of land alienation, tribal participation in forest protection, full PESA implementation and reduction of disempowering shifting cultivation.

[ANALYSIS] These functions let NCST examine whether development treats tribes merely as beneficiaries or as rights-bearing communities. FRA implementation, Gram Sabha participation, commons and cultural survival become relevant evidence even though FRA post-dates the 2005 notification.

However, institutional boundaries remain. Fifth Schedule Governors and Tribal Advisory Councils have their constitutional roles; PESA Gram Sabhas exercise local powers through law; Sixth Schedule Autonomous Councils possess specified legislative, judicial and administrative functions; FRA committees process claims; mining, forest and environmental authorities issue statutory decisions.

[LIMIT] NCST may summon evidence, inquire, recommend and report, but cannot itself grant a forest title, cancel a mining lease, legislate for an Autonomous Council or acquire land.

The appropriate reform is therefore stronger monitoring, regional access, joint field studies and reasoned government response—not substitution of NCST for self-government institutions.

Thus, NCST is a constitutional sentinel over tribal safeguards. Its effectiveness lies in connecting dispersed institutions to accountability while respecting their legal competence.

Why this earns marks: It names the 2005 domains, distinguishes every major tribal institution and derives a boundary-respecting reform conclusion.

Original Solved Mains 6 - 20 marks, 250 words

Question: "Constitutional status is necessary but insufficient for effective social-justice commissions." Evaluate with reference to NCSC, NCST and NCBC.

Model solution

Constitutional status is valuable because it entrenches an institution and creates a durable accountability route, but outcomes depend on capacity and follow-up.

Why necessary: Articles 338-338B guarantee existence, common composition, presidential appointment, own procedure, six duties, evidence-compulsion powers, mandatory major-policy consultation and report laying with reasons for non-acceptance. The 89th Amendment's separation of NCST recognised distinct tribal problems; the 102nd Amendment placed NCBC's broader SEBC-safeguard role beyond an ordinary statutory design.

Why insufficient: First, recommendations are advisory. Civil-court powers collect evidence but do not produce decrees or punishment. Second, executive-led appointments and government-dependent staffing can constrain perceived autonomy. Third, vacancies and weak regional presence reduce access. Fourth, poor social data weakens identification and development advice. Fifth, delayed reports or laying reduce preventive value; the NCSC archive records substantial lag in a recent report cycle. Sixth, jurisdiction overlaps with police, courts, welfare departments, PESA/FRA institutions and State commissions. Seventh, governments may formally respond without implementing.

Differentiated impact: NCSC requires effective linkage with PCR/PoA enforcement; NCST needs land/forest/displacement expertise and field presence; NCBC requires transparent list evidence and correct Centre-State coordination after Article 342A.

Reform: publish appointment criteria, fill posts predictably, strengthen research and regional offices, set report/response timelines, create recommendation-wise dashboards and use joint-referral protocols. Blanket binding powers require caution because they may duplicate courts and elected policy authority.

Therefore, constitutional status secures voice, continuity and visibility; institutional independence, evidence and accountable implementation convert those assets into justice.

Why this earns marks: It evaluates against explicit criteria, uses body-specific evidence, gives a counterweight to the critique and proposes proportionate reforms.

Original Solved Mains 7 - 20 marks, 250 words

Question: Trace how the 102nd and 105th Constitutional Amendments reshaped the backward-classes institution and Centre-State identification power.

Model solution

The two amendments separate two questions: the status of NCBC and the federal authority to identify SEBCs.

Before 2018: *Indra Sawhney* led to the NCBC Act, 1993. The statutory body primarily examined inclusion/exclusion and over/under-inclusion; its advice in that scheme was ordinarily binding and it had civil-court evidence powers.

102nd Amendment: Operational from 15 August 2018, it inserted Article 338B, Article 342A and Article 366(26C), while the 1993 Act was repealed. NCBC became a constitutional body with broader safeguards monitoring, complaints, socio-economic advice/evaluation, reporting and major-policy consultation. Original Article 342A used presidential specification and parliamentary variation language.

Judicial consequence: In *Jaishri Laxmanrao Patil* (2021), the majority read the wording as displacing States' independent power to identify SEBCs. The Maratha quota also failed the separate 50 per cent ceiling test; the two issues should not be conflated.

105th Amendment: Operational from 15 September 2021, it confined Article 342A(1)-(2) to the Central List for Central purposes, defined that list, inserted clause (3) allowing States/UTs by law to maintain different own-purpose lists, amended Article 366(26C), and exempted 342A(3) purposes from Article 338B(9) consultation.

Assessment: The 102nd strengthened national institutional accountability but created a federal ambiguity with major consequences. The 105th restored/clarified subnational identification while preserving a Central List.

[LIMIT] State list power does not remove constitutional equality review or reservation limits, and NCBC constitutionalisation does not make its recommendations judicial orders.

Thus, the trajectory moved from status enhancement with centralising text to an explicit dual-list federal settlement.

Why this earns marks: It follows chronology, separates institutional and federal questions, gives commencement dates and uses the case-amendment relationship accurately.

Original Solved Mains 8 - 20 marks, 250 words

Question: Suggest reforms to improve the independence, accountability and coordination of the National Commissions for SCs, STs and Backward Classes without converting them into parallel courts.

Model solution

Reform should strengthen evidence, voice and follow-up while preserving the commissions' investigative-recommendatory character.

Appointments and tenure: Publish eligibility and conflict-of-interest criteria, forecast vacancies and use a transparent search/shortlist process before presidential appointment. This improves legitimacy without changing the constitutional appointing authority.

Capacity: Fill sanctioned posts on schedule, strengthen regional offices, create multidisciplinary research units and ensure accessible digital plus offline complaints. NCST requires land/forest/resource expertise; NCSC needs service and atrocity-safeguard knowledge; NCBC needs social-statistical and federal-list expertise.

Evidence: Adopt common minimum inquiry standards, secure data-sharing with ministries/States and publish methodology. Sensitive personal data and complainant identity require protection.

Reporting: Prescribe fixed calendars for submission, transmission, legislative laying and response. Memoranda should answer each recommendation, state reasons and identify responsibility and deadline. A public dashboard should distinguish accepted, partly accepted, rejected and implemented recommendations.

Coordination: Establish referral protocols among national and State commissions, NHRC, NCM and enforcement bodies. Joint thematic inquiries should address intersectional harms without dissolving specialist mandates.

Legislative scrutiny: Dedicated committee hearings on major reports can turn formal laying into substantive accountability.

Why not parallel courts: Blanket binding orders would require appeal, procedural safeguards and jurisdictional demarcation and could conflict with courts, police and elected policy authority. Clause (8) evidence tools should remain tied to investigation/inquiry.

Therefore, the preferred model is “strong evidence + mandatory reasons + visible follow-up”, not unreviewable commission command.

Why this earns marks: It answers all three reform dimensions, differentiates body capacities, states implementable proposals and expressly respects separation of functions.

Final consolidated register notes - National Commissions for SCs, STs and Backward Classes

Constitutional identity in one frame

- [FACT] NCSC = Article 338; NCST = Article 338A; NCBC = Article 338B.
- [FACT] Each current body has Chairperson + Vice-Chairperson + three Members, appointed by the President by warrant.
- [FACT] Service conditions and tenure come through presidential rules, subject to parliamentary law; the Articles do not themselves state “three years”.
- [LIMIT] Constitutional status does not equal judicial status or binding recommendation.

Visual 77 - Five-number rapid card

Recall number	Meaning
3	Articles: 338, 338A, 338B
5	persons in each current commission
6	common duties in clause (5)
6	specified civil-court matter categories in clause (8)
2	levels of legislative report accountability: Union and State

Evolution and operational dates

Visual 78 - Evolution strip

Special Officer under original Article 338
|
65th Amendment -> combined constitutional commission
| operational 12 Mar 1992
89th Amendment -> NCSC + NCST
| operational 19 Feb 2004
Indira Sawhney -> NCBC Act 1993
|
102nd Amendment -> constitutional NCBC
operational 15 Aug 2018
|
105th Amendment -> explicit State/UT own SEBC lists
operational 15 Sep 2021

- [FACT] 65th-Amendment combined commission had Chairperson + Vice-Chairperson + five other Members.
- [FACT] 89th Amendment Act year is 2003; institutional separation date is 19 February 2004.
- [FACT] 102nd assent 11 August 2018; commencement 15 August.
- [FACT] 105th assent 18 August 2021; commencement 15 September.

Shared constitutional engine

Visual 79 - Clause spine

Clause	Rapid recall
1	create body
2	composition/conditions
3	presidential warrant
4	own procedure
5	duties
6	Parliament report route
7	State report route
8	civil-court evidence tools
9	major-policy consultation

Six-duty checklist

1. [FACT] investigate and monitor safeguards;
2. [FACT] inquire into specific deprivation complaints;
3. [FACT] participate and advise in socio-economic development;
4. [FACT] evaluate development progress;
5. [FACT] present annual and other reports and recommend measures; and
6. [FACT] perform other presidentially specified functions, subject to parliamentary law.

Visual 80 - Duty mnemonic

M I D E R O

Monitor

Inquire

Development advice

Evaluate

Report/recommend

Other functions

Civil-court powers and their boundary

Visual 81 - Evidence toolkit

Power	Exact use
attendance	summon from any part of India; examine on oath
documents	discovery and production
affidavits	receive evidence
public records	requisition record/copy from court or office
commissions	witness/document examination
other	presidential rule

- [LIMIT] Available only while investigating clause (5)(a) or inquiring under clause (5)(b).
- [LIMIT] No conviction, sentence, decree, damages award, law-striking or final list order.

Reporting and legislative accountability

Visual 82 - Report routes

UNION:

Commission -> President -> each House + response/rejection reasons

STATE:

NCSC/NCST -> Governor -> State Legislature + memorandum

NCBC -> State Government -> State Legislature + memorandum

- [ANALYSIS] The constitutional sanction is reason-giving and legislative visibility.
- [LIMIT] Submission, laying, scrutiny and implementation are four different stages.
- [CURRENT] A recent NCSC archive cycle records a substantial submission-to-laying lag; timeliness is therefore an evidence-backed reform issue.

Consultation control

Visual 83 - Consultation rule

Body	Rule
NCSC	Union and every State consult on all major SC policy
NCST	Union and every State consult on all major ST policy
NCBC	Union and every State consult on all major SEBC policy
NCBC exception	Article 338B(9) does not apply for Article 342A(3) purposes

- [LIMIT] Consultation is not concurrence or veto.
- [ANALYSIS] Meaningful consultation should precede final policy and use relevant material.

NCSC domain and boundaries

Visual 84 - NCSC action map

SC SAFEGUARDS
equality + untouchability + representation + services + welfare
|
NCSC monitor / complaint / advice / report
|
department + police/prosecutor/court + legislature

- [FACT] NCSC may monitor PCR and SC/ST PoA safeguards.
- [LIMIT] It does not register the criminal case, file charge-sheet, prosecute or punish.
- [FACT] Article 338(10) retains the Anglo-Indian reference.
- [PYQ] 2018 Q2 requires Articles 338, 15(5), 30(1) and the advisory limit.

NCST distinctive domain

Visual 85 - Tribal-rights recall

2005 function family	Keywords
forest livelihood	minor forest produce
resources	minerals and water as provided by law
economy	viable livelihoods
displacement	relief and rehabilitation
land	prevent alienation and rehabilitate
environment	tribal forest participation
self-government	full PESA implementation
cultivation	reduce disempowering shifting cultivation

- [LIMIT] 2005 rules predate FRA; use FRA as a later safeguard linkage, not as quoted 2005 wording.
- [LIMIT] NCST does not administer Fifth/Sixth Schedule institutions, PESA Gram Sabhas or FRA claim bodies.

NCBC transformation

Visual 86 - Before and after

Before 2018	After 15 August 2018
NCBC Act, 1993	Article 338B
inclusion/exclusion focus	all safeguards + complaints + development
specialist statutory composition	Chair + Vice-Chair + three Members
statutory report/powers	constitutional report/consultation
civil-court powers already present	powers constitutionally entrenched
advice ordinarily binding in statutory list scheme	no general binding recommendation clause

- [FACT] Statutory NCBC arose after *Indra Sawhney*.
- [LIMIT] Constitutionalisation broadened scope but did not make NCBC a court or final list-maker.
- [PYQ] 2022 Q5 thesis: “status, scope and visibility rose; binding sanction did not.”

SC, ST and SEBC list mechanics

Visual 87 - Three-list board

Group	Initial/Central route	Later/own-list route
SC	President under Article 341(1)	Parliament under 341(2)
ST	President under Article 342(1)	Parliament under 342(2)
Central SEBC	President under 342A(1)	Parliament under 342A(2)
State/UT SEBC	not the Central List route	State/UT by law under 342A(3)

- [FACT] SC/ST recognition is State/UT-specific.
- [FACT] Article 366(26C) defines SEBCs through Article 342A for the applicable government.
- [LIMIT] Commission recommendation is evidence/advice, not the final inclusion instrument.

102nd-105th federal trajectory

Visual 88 - Case-amendment chain

102nd: Article 338B + original 342A

|
Jaishri Patil majority: State identification displaced
|

105th:

Central List = Central purposes

State/UT list = own purposes by law

338B(9) exception for 342A(3)

- [LIMIT] Maratha ceiling holding and SEBC-identification holding are separate.
- [LIMIT] State list power remains subject to equality and judicial review.

Davinder Singh rapid control

Visual 89 - List versus distribution

Permitted in principle	Not permitted through sub-classification
evidence-based internal distribution of reservation benefits	deletion from Article 341 list
focus on relatively more deprived listed groups	exclusion of the remainder from all benefit
judicial review of data and design	treating separate opinions as enacted creamy-layer law

- [CURRENT] Judgment date: 1 August 2024.
- [FACT] It overruled *E.V. Chinnaiah* on the sub-classification issue.

Institutional comparison and coordination

Institution	Source	Correct role
NCSC/NCST/NCBC	Constitution	group-specific monitor/adviser/reporter
NHRC	1993 Act	broad statutory human-rights body
NCM	1992 Act	statutory minorities body
State commissions	State-specific framework	territorial complement
police/courts	criminal/civil/constitutional law	binding enforcement/adjudication

- [ANALYSIS] Best reform baseline: coordinated specialisation, not indiscriminate merger.
- [PYQ] 2018 Q16 requires a defended case against wholesale umbrella merger.
- [PYQ] 2020 Q15 teaches that constitutional label must be paired with powers, capacity and follow-up.

Independence and reform register

Visual 90 - Reform recall

transparent selection
+
timely vacancies
+
regional and research capacity
+
fixed report / laying / response calendar
+
recommendation-wise public follow-up
+
inter-commission referral protocols
=
stronger accountability without parallel courts

- [ANALYSIS] Constitutional strengths: entrenchment, presidential appointment, own procedure, evidence tools, consultation and reports.
- [LIMIT] Practical risks: executive dominance, vacancies, resources, data gaps, delayed reports, overlap and advisory force.
- [ANALYSIS] Do not demand blanket binding power without addressing appeal, procedure, competence and separation of functions.

Prelims final trap box

1. Current commission = five persons; historical combined body = seven.
2. 89th Act 2003; separation operational 19 February 2004.
3. 102nd operational 15 August 2018.
4. 105th operational 15 September 2021.
5. Civil-court powers apply in inquiry/investigation only.
6. "Issuing commissions" is evidentiary, not institution creation.
7. NCSC/NCST State report -> Governor; NCBC State report -> State Government.
8. Consultation is not concurrence.
9. NCST monitors PESA/FRA safeguards; it does not administer them.
10. NCSC monitors atrocity safeguards; it is not police or court.
11. Central SEBC List and State lists may differ after the 105th Amendment.
12. NCSC/NCST/NCBC do not finally add communities to constitutional lists.

PYQ answer theses

- **2018 Q2:** NCSC can investigate and recommend, but cannot enforce reservation against the Articles 15(5)-30 minority-institution exclusion.
- **2018 Q16:** Preserve specialist constitutional bodies; coordinate intake, data and referrals rather than impose a single umbrella.
- **2020 Q15:** Article 368 constitutionalisation can add permanence and accountability, but status without resources/enforcement is insufficient.
- **2022 Q5:** NCBC moved from list-focused statute to broad constitutional safeguards, reporting and consultation; recommendations remain advisory.
- **2023 Prelims Q35:** among the four bodies, only NCBC is constitutional; official local key unavailable, so no option letter is claimed.
- **2024 Prelims Q84:** President specifies STs; status is State-specific; official Set-A key B.

Final answer spine

DEFINE THE BODY / ARTICLE

|

STATE THE EXACT CLAUSE OR AMENDMENT

|

ADD NAMED EVIDENCE:

65th / 89th / 102nd / 105th

Indra Sawhney / Jaishri Patil / Davinder Singh

|

EXPLAIN INSTITUTIONAL EFFECT

|

QUALIFY:

advisory, not court; list authority elsewhere; implementation gap

|

GIVE GRADED VERDICT

Final current and legal limitations

- [CURRENT] Legal control date is 19 August 2026, Asia/Kolkata.
- [LIMIT] No current officeholder, vacancy number or complaint-disposal statistic is treated as a static fact.
- [LIMIT] Article 338B(7)'s State Government wording is preserved even though many summaries incorrectly generalise the Governor route from Articles 338 and 338A.
- [LIMIT] The 2023 Prelims concept is resolved without asserting an unavailable official key.
- [LIMIT] Detailed reservation percentages, creamy-layer criteria and promotion doctrine remain with the reservation owner; this package retains only the amount needed to explain commission and list architecture.
- [LIMIT] Every reform above remains a proposal unless adopted through the constitutionally competent law, rule or procedure.